

Subject: LAW

Production of Courseware

e-Content for Post Graduate Courses



Paper : Advanced constitutional law

Module : Separation of powers



Component - I - Personal Details

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Component - I (B) Description of Module

Subject Name	Law
Paper Name	Advanced Constitutional Law
Module/ Name/Title	Separation of Powers
Module Id	22
Pre-requisites	Basic Knowledge of the concept of Separation of Powers
Objectives	To understand the basic concepts relating to separation of powers between legislature, executive and judiciary
Keywords	legislature, executive, judiciary, separation of powers

Component - II

Module 10: Separation of Powers

Structure:

1. Introduction
2. Learning Outcome
3. Historical Background
4. Position of Doctrine of Separation of Powers in U.K. and U.S.A
5. Doctrine of Separation of Powers in India
6. Executive in India and Doctrine of Separation of Powers
7. Legislature in India and Doctrine of Separation of Powers
8. Judiciary in India and Doctrine of Separation of Powers
9. Conclusion

1. Introduction

The term 'Separation of Powers' was coined by a French Jurist Montesquieu in his book *L. Esprit Des Lois* (Spirit of Laws) published in 1748. The doctrine of Separation of Powers deals with the mutual relations among the three organs of the Government namely legislature, executive and judicial. According to Montesquieu, there can be no liberty if the legislative and executive powers are amalgamated in the same person, or body and judicial power is not separated from the Legislative and Executive power. The integration of Judicial and legislative power would expose the life and liberty of the subject to arbitrary control as judge would then be the legislator. Judges might behave with violence and oppression if Judiciary is merged with the

Executive.¹

2. Learning Outcome

Understanding the functioning of different organs of the State.

Comprehensive view regarding applicability of principle of separation of powers along with system of checks and balance.

3. Historical Background

The origin of this principle goes back to the period of Plato and Aristotle. It was Aristotle who for the first time classified the functions of the Government.

Jurist	Division of Power		
Aristotle	Deliberative It is the Sovereign power in the Constitution like declaring war and peace, formation and dissolution of alliances, death sentence and exile etc.	Magisterial The Magistrates are the officers of State, its Managers.	Judicial It determines disputes
John Locke	Executive power Executive and Judicial powers	Legislative power Rule making power	Federative power Power regulating the Foreign affairs
Montesquieu	Legislative Law making power	Executive Implementation of the Law	Judicial Adjudication of disputes

The concentration of powers in a single person would result in a tyrannical form of government. There should be clear cut division of power between the three organs of the state i.e. Executive, Legislative and the Judiciary in order to check the arbitrariness of the government.

4. Position of Doctrine of Separation of Powers in U.K. and U.S.A

	Position in England	Position in U.S.A
Legislative powers	Parliament	Congress of the United States
Executive Powers	King	President

¹ Montesquieu, De L Esprit des lois, 1748 quoted in I. P. Massey, *Administrative Law*, 33, EBC publishing pvt Ltd(2003).

Judicial Powers	Courts	Supreme Court
Jurist	According to Wade and Phillips the doctrine of separation of powers implies:² (i) The same person should not form more than one organ of the Government. (ii) One organ of the Government should not exercise the function of other organs of the Government. (iii) One organ of the Government should not encroach with the function of the other two organs of the Government.	According to Madison, the accumulation of all powers legislative, executive and judicial, in the same hands whether of one, a few or many and whether hereditary, self appointed or elective, may justly be pronounced the very definition of tyranny.
Position	In England, the King being the executive head is also an integral part of the legislature. His ministers are also members of one or other Houses of Parliament. This concept goes against the idea that same person should not form part of more than one organ of the Government. The House of Commons control the executive. So far as judiciary is concerned, in theory House of Lords is the highest Court of the country but in practice judicial functions are discharged by specially appointed Law Lords and other Lords who	The President of the United States interferes with the exercise of powers by the Congress through the exercise of his veto power. He also exercises the law making power in exercise of his treaty-making power. He also interferes with the functioning of the Supreme Court through the exercise of his power to appoint judges. In the same manner Congress interferes with the power of the President through vote on budget, approval of appointments by the Senate and the ratification of treaty. It also interferes with the exercise of powers by the courts by passing procedural laws, creating special courts and by approving the appointment of judges. In its turn, Judiciary interferes with the powers of the Congress and the President

² J. J. R. Upadhaya, *Administrative Law*, 35, Central Law Agency(2001).

	held judicial post. Thus, we can say that doctrine of separation of powers is not applicable to Britain in strict sense. ³	through the exercise of the power of the judicial review. ⁴
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The three organs can practically not be segregated into three watertight compartments due to their interdependence on each other to ensure efficacious governance. They have to work in accordance and in consonance to achieve a meaningful sustenance and purposeful progress of citizens. Therefore the system of checks and balances has to be followed so that each organ can work efficiently without any abuse of power vested in them.

5. Doctrine of Separation of Powers in India

In India, the governance is vested in three organs of the State i.e. Executive, the Legislature and the Judiciary. The executive powers are with the President, the legislative powers with the Parliament and the judicial powers with the Judiciary. The functions and powers of the President are enumerated in the Constitution itself. The Parliament is competent to make any law subject to the provisions of the Constitution and there is no other limitation on its legislative powers. Similarly, the Judiciary is independent in its field and there can be no interference with its judicial functions either by the executive or by the legislature. At the same time, the Court cannot arrogate to itself any function, which is left to the domain of the other two branches, namely, the executive and the legislature.⁵ Thus, no organ can overstep the essential functions of the other organ. But, apart from the Directive Principle laid down in Article 50 which enjoins separation of judiciary from the executive, the constitutional provisions does not embody any formalistic and dogmatic division of powers. In order to have clear understanding of this principle each organ has to be dealt with separately.

6. Executive in India and Doctrine of Separation of Powers

As India is a federation, there is Executive both at Union and State level. President is operating at Union level and Governor at State level.

Scope of Executive Powers in India		
Sr.no.	Executive Power of Union	Executive Power of State
1. Vesting of Executive Power	Article 52 provides that there shall be a president of India. Article 53(1) declares the President to be the head of the Union Executive. It provides that the executive power of	Article 153 provides that there shall be a Governor for each State. Article 154(1) provides that the executive power of the State shall be vested in the Governor and shall be

³ *Supra* note 1, at 34.

⁴ *Supra* note 1, at 35.

⁵ M. P. Jain & S. N. Jain, *Principles of Administrative Law*, 36, (2005).

	the Union shall be vested in the President and shall be exercised by him either directly or through officers subordinate to him.	exercised by him either directly or through officers subordinate to him in accordance with this Constitution.
2. Extent of Executive Power	Article 73(1) provides that the executive power of the Union extends to the matters with respect to which Parliament has power to make laws. It extends to the exercise of such rights, authority and jurisdiction as are exercised by the Government of India by virtue of any treaty or agreement. The power is however, subjected to the provisions of the Constitution. The executive power of the Union does not extend to a matter enumerated in the Concurrent list of the Seventh Schedule unless expressly provided in the Constitution or expressly entrusted by a law made by Parliament.	Article 162 deals with the extent of executive power of State and it states that Subject to the provisions of this Constitution, the executive power of a State shall extend to the matters with respect to which the Legislature of the State has power to make laws: Provided that in any matter with respect to which the Legislature of a State and Parliament have power to make laws, the executive power of the State shall be subject to, and limited by, the executive power expressly conferred by this Constitution or by any law made by Parliament upon the Union or authorities thereof.
3. Conduct of business of Government of India and State	Article 77 requires that every executive action of the Union shall be expressed to be taken in the name of the President. Orders and other Instruments so executed shall be authenticated in such a manner as may be prescribed by rules to be made by the President.. The President is further empowered to make rules for the more convenient transaction of the business of the Government of India and for the allocation of the said business among the Ministers. All the executive actions of the Union government are taken in his name. He appoints officials of the Union Government, Prime Minister, and Council of ministers at the advice of the Prime Minister, Chief Justice and judges of Supreme Court and High Court at the advice of the Chief Justice of India etc.	Article 166 provides that all executive action of the Government of a State shall be expressed to be taken in the name of the Governor. Orders and other instruments made and executed in the name of the Governor shall be authenticated in such manner as may be specified in rules to be made by the Governor, The Governor shall make rules for the more convenient transaction of the business of the Government of the State, and for the allocation among Ministers of the said business in so far as it is not business with respect to which the Governor is by or under this Constitution required to act in his discretion.

4. President or Governor not to be member of either Parliament or State Legislature	Article 59(1) provides that the President shall not be a member of either House of Parliament or of a House of the Legislature of any State, and if a member of either House of Parliament or of a House of the Legislature of any State be elected President, he shall be deemed to have vacated his seat in that House on the date on which he enters upon his office as President.	Article 158(1) provides that the Governor shall not be a member of either House of Parliament or of a House of the Legislature of any State specified in the First Schedule, and if a member of either House of Parliament or of a House of the Legislature of any such State be appointed Governor, he shall be deemed to have vacated his seat in that House on the date on which he enters upon his office as Governor.
5. Power of President to consult Supreme Court	Article 143(1) provides that if it appears to the President that a question of law or fact has arisen, or is likely to arise, which is of such a nature and of such public importance that it is expedient to obtain the opinion of the Supreme Court upon it, he may refer the question to that Court for consideration and the Court may, after such hearing as it thinks fit, report to the President its opinion thereon.	-----
6. Competent to frame Rules regarding conditions of service	Article 309 provides that President is competent to make rules regulating the recruitment, and the conditions of service of persons appointed, to such services and posts in connection with the affairs of the Union, until provision in that behalf is made by or under an Act of the appropriate Legislature. Any rules so made shall have effect subject to the provisions of any such Act. Every person who is a member of a defence service or of a civil service of the Union or of an all India service or holds any post connected with defence or any civil post under the Union, holds office during the pleasure of the President. (Article 310)	Article 309 provides that Governor is competent to make rules regulating the recruitment, and the conditions of service of persons appointed, to such services and posts in connection with the affairs of the State, until provision in that behalf is made by or under an Act of the appropriate Legislature. Any rules so made shall have effect subject to the provisions of any such Act. Every person who is a member of a civil service of a State or holds any civil post under a State holds office during the pleasure of the Governor of the State. (Article 310)

6.1 Interference of Executive in Legislature

Interference of Executive in Legislature		
Sr. No.	Interference of President in Parliament	Interference of Governor in Legislature
1. Executive - Part of Legislature also	Article 79 provides that the Union Parliament shall consist of the President and two Houses, known as the Council of States and the House of the People. He nominates 12 persons, eminent in literature, art, science or social service to the Rajya Sabha (Article 80(1)(a)). He may also nominate 2 persons belonging to the Anglo-Indian community to the Lok Sabha, if in his opinion that community is not adequately represented in the House (Article 331).	Article 168 provides that the State Legislature shall consist of the Governor, and where there are two Houses of the Legislature of a State, one shall be known as the Legislative Council and the other as the Legislative Assembly, and where there is only one House, it shall be known as the Legislative Assembly. The Governor of a State may nominate one member of that community to the Assembly if he is of opinion that the Anglo-Indian community needs representation in the Legislative Assembly of the State and is not adequately represented therein (Article 333).
2. Power to summon, prorogue and dissolve	It is the President who is vested with the power to summon the Sessions of the Houses of Parliament. The time and place of holding the session is to be determined by him. [Article 85(1)] Again it is the President who has power to prorogue the session of House of People. The President may dissolve Lok Sabha before the expiry of its term of five years. [Article 85(2)]	Article 174(1) states that the Governor shall from time to time summon the House or each House of the Legislature of the State to meet at such time and place as he thinks fit, but six months shall not intervene between its last sitting in one session and the date appointed for its first sitting in the next session. Article 174(2) provides that the Governor may from time to time Prorogue the House or either House; dissolve the Legislative Assembly
3. Power to address the Houses	The President may address either House of Parliament or both Houses assembled together and for that purpose, he may require the attendance of the members. He may send message to either House of Parliament with respect to a bill then	Article 175 provides that the Governor may address the Legislative Assembly or, in the case of a State having a Legislative Council, either House of the Legislature of the State, or both Houses assembled together, and for that purpose, he may require the attendance of members. He may send messages to the House or Houses of the Legislature

	pending in the House.[Article (86)] The President addressee both houses of Parliament assembled together after general election and at the commencement of the first sessions of each year.[Article (87)]	of the State, with respect to a Bill then pending in the Legislature. The Governor shall address the Legislative Assembly or, in the case of a State having a Legislative Council, both Houses assembled together after general election and at the commencement of the first sessions of each year. (Article 176)
4. Interference in the Legislative procedure	Every Bill passed by both houses of Parliament is sent to the President for his assent and becomes an Act only when it is assented to by him. He may give his assent or withhold it (Article 111). Every year the President causes to be laid before both houses of Parliament the Annual Financial Statement (the Annual Budget). Article 112(1).	Every Bill passed by the Legislative Assembly of a State or, in the case of a State having a Legislative Council, has been passed by both Houses of the Legislature of the State, is presented to the Governor for his assent. He may give his assent or withhold it (Article 200). Article 202(1) states that the Governor shall in respect of every financial year cause to be laid before the House or Houses of the Legislature of the State a statement of the estimated receipts and expenditure of the State for that year i.e annual financial statement.
5. Decision on question as to the Disqualifications of members	If any question arises as to disqualification of a member of either House of Parliament, then the question shall be referred for the decision of the President and his decision shall be final. Article 103(1).	If any question arises as to disqualification of a member of a House of the Legislature of a State, then the question shall be referred for the decision of the Governor and his decision shall be final. Article 192(1).
6. Appointment of Prime Minister, Chief Ministers and other Ministers	Article 75(1) provides that the Prime Minister shall be appointed by the President and the other Ministers shall be appointed by the President on the advice of the Prime Minister. The Ministers shall hold office during the pleasure of the President. [Article 75(2)]	Article 164(1) provides that the Chief Minister shall be appointed by the Governor and the other Ministers shall be appointed by the Governor on the advice of the Chief Minister, and the Ministers shall hold office during the pleasure of the Governor:
7. Duty to furnish information to the Executive	Duty has been imposed on the Prime Minister to communicate to the President: a. all decisions of the Council of Ministers relating to the administration of the affairs of the Union and proposals	The similar duty has been imposed on the Chief Minister by Article 167. It shall be the duty of the Chief Minister of each State: a. to communicate to the Governor of the State all decisions of the Council of Ministers relating to the administration of the affairs of the State and proposals for legislation;

	for legislation; b. Information relating to the administration of the affairs of the Union and proposals for legislation as the President may call for; c.If the President so requires, to submit any matter for the consideration of the Council of Ministers on which a decision has been taken by a Minister but not considered by the Council. (Article 78.)	b. Information relating to the administration of the affairs of the State and proposals for legislation as the Governor may call for; and c. If the Governor so requires, to submit for the consideration of the Council of Ministers any matter on which a decision has been taken by a Minister but which has not been considered by the Council.
8. Ordinance making power with the Executive	When both Houses of Parliament are not in session and the President is satisfied that circumstances exist which necessitates taking of immediate action, he may promulgate Ordinance. It shall have the same force and effect as an Act of Parliament, but every such Ordinance shall be laid before both Houses of Parliament. It shall cease to operate at the expiration of six weeks from the reassembly of Parliament, or, before the expiration of that period resolution disapproving it are passed by both Houses. It may be withdrawn at any time by the President.(Article 123)	When the Legislative Assembly of a State is not in session, or where there is a Legislative Council in a State, except when both Houses of the Legislature are in session, the Governor is satisfied that circumstances exist which render it necessary for him to take immediate action, he may promulgate such Ordinances as the circumstances require. It shall have the same force and effect as an Act of the Legislature of the State assented to by the Governor. It shall be laid before the Legislative Assembly of the State, or where there is a Legislative Council in the State, before both the Houses, and shall cease to operate at the expiration of six weeks from the reassembly of the Legislature, or if before the expiration of that period a resolution disapproving it is passed by the Legislative Assembly and agreed to by the Legislative Council. It may be withdrawn at any time by the Governor.(Article 213)
9. Powers in relation to emergency	Article 356 confers power on the president to issue a Proclamation declaring that the Government in a State cannot be carried on in accordance with the provisions of the Constitution. Parliament may confer on the President the power of the Legislature of the State to make laws. (Article 357)	----- -----

6.2 Interference of Executive in Judiciary

Interference of Executive in Judiciary		
Sr.No.	Interference of President in Judiciary	Interference of Governor in Judiciary
1. Power to Grant Pardon vested in the Executive	Article 72 provides that the President shall have the power to grant pardons, reprieves, respites or remissions of punishment or to suspend, remit or commute the sentence of any person convicted of any offence in all cases where the punishment or sentence is by a Court Martial; where the punishment or sentence is for an offence against any law relating to a matter to which the executive power of the Union extends; and where the sentence is a sentence of death.	The same power has been conferred on the Governor by Article 161. The Governor of a State shall have the power to grant pardons, reprieves, respites or remissions of punishment or to suspend, remit or commute the sentence of any person convicted of any offence against any law relating to a matter to which the executive power of the State extends.
2. Immunity to Executive under Article 361	Article 361 provides that the President shall not be answerable to any court for the exercise and performance of the powers and duties of his office or for any act done or purporting to be done by him in the exercise and performance of those powers and duties: Provided that the conduct of the President may be brought under review by any court, tribunal or body appointed or designated by either House of Parliament for the investigation of a charge under Article 61. No criminal proceedings whatsoever shall be instituted or continued against the President, in any court during his term of office. No process for the arrest or imprisonment of the President shall be issued from any court during his term of office.	Article 361 provides that the Governor of a State, shall not be answerable to any court for the exercise and performance of the powers and duties of his office or for any act done or purporting to be done by him in the exercise and performance of those powers and duties: No criminal proceedings whatsoever shall be instituted against the Governor of a State, in any court during his term of office. No process for the arrest or imprisonment of the the Governor of a State, shall be issued from any court during his term of office.
3. Role of Executive in appointment of Judges	Article 124(2) states that every Judge of the Supreme Court shall be appointed by the President by warrant under his hand and seal after consultation with such of the Judges of the Supreme Court and of the High Courts in the States as the President may deem necessary for the purpose. Provided that in the case of	In the same manner, every Judge of a High Court is appointed by the President by warrant under his hand and seal after consultation with the Chief Justice of India, the Governor of the State, and, in the case of appointment of a Judge other

	appointment of a Judge other than the chief Justice, the chief Justice of India shall always be consulted.	than the chief Justice, the chief Justice of the High court. [Article 217(1)]
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7. Legislature in India and Doctrine of Separation of Powers

Legislature in India		
Sr. No.	Union Parliament	State Legislature
1. Composition	Article 79 provides that there shall be a Parliament for the Union which shall consist of the President and two Houses to be known respectively as the Council of States and the House of the People.	Article 168 provides for Constitution of Legislatures in States. (1) For every State there shall be a Legislature which shall consist of the Governor, and (a) in the States of Bihar, Maharashtra, Karnataka, and Uttar Pradesh, two Houses; (b) in other States, one House. (2) Where there are two Houses of the Legislature of a State, one shall be known as the Legislative Council and the other as the Legislative Assembly, and where there is only one House, it shall be known as the Legislative Assembly.
2. Function (Article 245 and 246) (Legislative Procedure has been dealt with under Article 107 and 108)	Parliament has exclusive power to legislate on matters enumerated in List I i.e. Union List. Article 248 states that Parliament has exclusive power to make any law with respect to any matter not enumerated in the Concurrent List or State List.	The Legislature of States has exclusive power to legislate on matters enumerated in List II i.e. State List. Both Parliament as well as State Legislature can legislate on matters enumerated in List III i.e. Concurrent List.
3. Framing Rules of Procedure	Each House of Parliament may make rules for regulating its procedure and the conduct of its business, subject to the provisions of this Constitution. (Article 118)	The Legislature of a State may make rules for regulating its procedure and the conduct of its business, subject to the provisions of this Constitution. (Article 208)

7.1 Interference of Legislature in Executive

Interference of Legislature in Executive	
1. Role in election of President	Article 54 provides that the President shall be elected by the members of an electoral college consisting of the elected members of both Houses of Parliament; and the elected members of the Legislative Assemblies of the States.
2. Impeachment Proceedings against President carried on by Parliament (Article 61)	An impeachment is a quasi judicial procedure in Parliament. Either House may prefer the charge of violation of the Constitution before the other house which shall then either investigate the charge itself or cause the charge to be investigated. But the charge cannot be preferred by a house unless – (a) a resolution containing the proposal is moved after a 14 days notice in writing signed by not less than $\frac{1}{4}$ of the total number of members of that house; and (b) the resolution is then passed by a majority of not less than $\frac{2}{3}$ of the total membership of the house. The president shall have a right to appear and to be represented at such investigation. If as a result of the investigation, a resolution is passed by not less than $\frac{1}{3}$ of the total membership of the House before which the charge has been preferred declaring that the charge has been sustained such resolution shall have the effect of removing the President from his office with effect from the date on which such resolution is passed.
3. Council of Ministers to aid and advise President	Article 74(1) provides that there shall be a Council of Ministers with the Prime Minister at the head to aid and advise the President who shall, in the exercise of his functions, act in accordance with such advice. Provided that the President may require the Council of Ministers to reconsider such advice, either generally or otherwise, and the President shall act in accordance with the advice tendered after such reconsideration. The similar provision of Council of Ministers to aid and advise Governor has been made under Article 163. There shall be a Council of Ministers with the Chief Minister at the head to aid and advise the Governor in the exercise of his functions, except in so far as he is by or under this Constitution required to exercise his functions or any of them in his discretion.

7.2 Interference of Legislature in Judiciary

Interference of Legislature in Judiciary		
Sr. No	Constitutional Provisions	Decision by Apex Court
1. Court not to inquire into proceedings of Parliament or Legislature (Article 122)	Article 122 provides that the Court shall not call validity of any proceedings in Parliament in question on the	In <i>Ramdas Athawale v Union Of India</i> , the validity of the proceedings in the Lok Sabha commencing from 29th January, 2004 was challenged on the ground that the President has not addressed both Houses of Parliament as envisaged under Article 87 of the Constitution. The Supreme Court

and 212)	ground of any alleged irregularity of procedure. Similarly, Article 212 provides that the Court should not enquire into the proceedings of the Legislature.	held that the Speaker is the guardian of the privileges of the House and its spokesman and representative upon all occasions. He is the interpreter of its rules and procedure, and is invested with the power to control and regulate the course of debate and to maintain order. (AIR 2010 SC 1310) In Satish Chandra v Speaker, Lok Sabha , It was held that the judicial review and interference with the powers of the speaker of Lok Sabha or Chairman of Rajya Sabha for taking action against such Members of Parliament for indulging in disruption is not permissible being the sole prerogative of the Speaker. [(2014) 2 SCC178]
2. Parliamentary privileges (Article 105 and 194)	Privileges are those rights without which it would be impossible for either House to maintain its independence of action or the dignity of its position. They may be divided into two groups i.e. firstly, those which are enjoyed by the members individually and secondly, those belonging to each House of Parliament as a collective body. The privileges of the House collectively are – (i) The right to publish debates and proceedings and the right to restrain publication by others (ii) The right to exclude others (iii) The right to regulate the internal affairs of the House, and to decide matters arising within the walls (iv) The right to publish	In P.V. Narasimha Rao v State (CBI/SPE) , it was observed that the object of the protection is to enable members to speak their mind in Parliament and vote in the same way, freed of the fear of being made answerable on that account in a Court of law. It is not enough that members should be protected against civil action and criminal proceedings, the cause of action of which is their speech or their vote. To enable members to participate fearlessly in Parliamentary debates, members need the wider protection of immunity against all civil and criminal proceedings that bear a nexus to their speech or vote. It is for that reason that a member is not "liable to any proceedings in any Court in respect of anything said or any vote given by him." (AIR1998 SC 2120) In Raja Ram Pal v Hon'ble Speaker, Lok Sabha , it was observed that a member is part of the House due to which his or her conduct always has a direct bearing upon the perception of the House. Any legislative body must act through its members and the connection between the conduct of the members and the perception of the House is strong. Therefore, even if the Parliament had only the limited remedial power to punish for contempt, the power to expel would be well within the limits of such remedial contempt power. (

	Parliamentary misbehaviour (v) The right to punish members and outsiders for breach of its privileges.	(2007) 3 SCC 184) Recently, the Supreme Court has showed concern over increase in corruption in allocation of coal block case. It was held that for successful working of democracy, it is essential that public revenues are not defrauded and public servants do not indulge in bribery and corruption and if they do, such allegations should be inquired into fairly, properly and promptly and those who are guilty are brought to book. (Manohar Lal Sharma v Principal Secretary, (2014) 2 SCC 532)
3. Adjudication of water-disputes	Article 262 provides that Parliament may by law provide for the adjudication of any dispute or complaint with respect to the use, distribution or control of the waters of, or in, any inter State river or river valley and Notwithstanding anything in this Constitution, Parliament may by law provide that neither the Supreme Court nor any other court shall exercise jurisdiction in respect of any such dispute or complaint.	The Supreme Court refused to interfere in the policy adopted by the State for allocation of water from Sardar Sarovar Project to the District of Kutch. It was held that court has to exercise judicial restraint and not encroach upon executive or legislative domain. It can interfere only if policy is inconsistent with constitutional laws or arbitrary or irrational. (Kachchh Jal Sankat Nivaran Samiti v State of Gujarat, AIR 2013 SC 2657)
4. Role of Legislature in removal of judges	A Judge of the Supreme Court may be removed by an order of the President on the ground of proved misbehaviour or incapacity. The order of the President can only be passed after he has been addressed to by both Houses by a majority of total membership of that house and also by a majority of not less than two thirds of the members present and voting[Article 124(4), Article 217(1) (b) provides that High Court judge may be removed in the same manner as provided by Article 124(4)]. The procedure for the presentation of an address and for the investigation and proof of the misbehaviour or incapacity of a Judge will be determined by Parliament by law [Article 124(5)]. Parliament enacted the Judges (Inquiry) Act 1968 in the exercise of the power conferred by Article 124(5).The Act and the Judges (Inquiry) Rules	

	1969 made thereunder provide for removal of a Judge on the ground of proved misbehaviour or incapacity.
5. Advice tendered by Ministers to President or Governor cannot be inquired into in any court. [Article 74(2) and Article 163(3)]	

8. Judiciary in India and Doctrine of Separation of Powers

Article 13 makes fundamental rights enforceable in the Courts. It declares that a law which is inconsistent with the fundamental rights is void, whether that law is pre constitutional or post constitutional. This power of judicial review is exercised by the Supreme Court and the High Court under Article 32 and 226 respectively. The courts can declare a law unconstitutional if it is inconsistent with the fundamental rights.

The theory of basic structure was laid down by the Supreme Court in *Fundamental rights case*.⁶ There are certain *basic features* of the Constitution like Sovereignty, free and fair elections, federal structure, rule of law etc. that cannot be altered or destroyed by the parliament. History is the proof of the fact that this amendment power tilted either in favour of Parliament or Judiciary. By 42nd Amendment, Parliament tried to nullify the effect of the Supreme Court ruling in *Smt. Indira Nehru Gandhi v Raj Narain*.⁷ When Indira Gandhi was found guilty of using corrupt practices during elections by the Allahabad High Court, several amendments were made in the Constitution in order to take away the power of judicial review. Thus, the validity of elections could not be challenged.⁸ It brought about a drastic change in the provisions of the Constitution. Article 368, which gives amending power to the Parliament, was so amended that any amendment made by the Parliament is immunised from being questioned in Court of law. The power tilted in favor of the legislature.⁹ Ultimately, in *Minerva Mills v Union of India*¹⁰, the Supreme Court ruled that the 'judicial review', being a basic feature of constitution, cannot be taken away by the Parliament by amendment of the Constitution.

8.1 Interference of Judiciary in Executive

It is submitted that it is difficult to achieve independence of judiciary from the executive as the ever increasing power of the executive is likely to topple the balance on which the Indian Judicial System rests. Now-a-days, there are many instances where judiciary has intervened in matters entirely within the domain of executive.

Powers vested with the Executive	Decision of the Court	Interference in the Executive by Judiciary
1. Clemency	<i>Devender</i>	The power vested in the President under article 72 and

⁶ *Kesavananda Bharti v. State of Kerala*, AIR 1973 SC 1461.

⁷ AIR 1975 SC 2299.

⁸ Divyanshu Priyadarshi, "Case Study: Smt. Indira Nehru Gandhi vs. Shri Raj Narain and Anr. on 7 November, 1975", http://papers.ssrn.com/sol3/papers.cfm?abstract_id=2146120, accessed on April 16, 2014 at 6.00 pm.

⁹ Nidhi Singh & Anurag Vijay, "Separation of Powers: Constitutional Plan and Practice", International Journal of Scientific and Research Publications, Volume 3, Issue 11, November 2013, <http://www.ijsrp.org/research-paper-1113/ijsrp-p2337.pdf>, accessed on April 9, 2014 at 7.00 pm.

¹⁰ AIR 1980 SC 1798.

Powers (Article 72 and 161)	Pal Singh Bhullar v State of N.C.T of Delhi , (AIR 2013 SC 1975). Shatrughan Chauhan v Union of India , [(2014) 3 SCC 1].	Governor under article 161 of the Constitution is manifestation of the prerogative of the State. It is neither a matter of grace nor a matter of privilege, but is an important constitutional responsibility to be discharged by the highest executive keeping in view the considerations of larger public interest and welfare of people. The said power has to be exercised with the aid of justice and not in defiance of it. Though no words of limitations are indicated in article 72 and 161 but the said power is subject to limited judicial review, on the ground of unfair, unjust and unreasonable procedure of disposal of mercy petition.
2. Ordinance making power of Executive (Article 123 and 213)	AK Roy v Union of India , (AIR 1981 SC 2138). DC Wadhwa v State of Bihar , AIR 1987 SC 579.	The National Security Ordinance 1980 provided for detention of persons acting in a manner prejudicial to the defence of India, security of India, security of the State, and friendly relations with foreign powers. The Ordinance was challenged on the ground that it suffered from vagueness and arbitrariness. The Supreme Court held that the ordinance making power of the President would be subject to the tests of vagueness arbitrariness, reasonableness, public interest, and that it was passed during the recess of the Union Parliament. It was brought to the notice of the court that between 1967 and 1980 in the State of Bihar 256 ordinances were promulgated and all these were kept alive for periods ranging from one year to 14 years by repromulgation from time to time. Out of these 69 ordinances were repromulgated several times with the prior permission of the president. The Supreme Court struck down this exercise of the Ordinance making power as a subversion of the democratic process and colourable exercise of power. The Court held that such exercise of power amounted to a fraud upon the Constitution and hence unconstitutional. The court observed that the Executive could not usurp the functions assigned to the Legislature under the constitution.

8.2 Interference of Judiciary in Legislature

Constitutional Provisions	Interference in Legislature
Power to regulate its proceedings (Article 145 and 227(2)(b))	The Supreme Court can make rules for regulating generally the practice and procedure of the Court including rules as to the persons practising before the Court, rules as to the procedure for hearing appeals, and other matters pertaining to appeals including the time within which appeals to the Court are to be entered. Even the High

	Court may make and issue general rules and prescribe forms for regulating the practice and proceedings of such courts.
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8.3 Doctrine of Separation of Powers and Judicial Attitude

Case	Position regarding Separation of Powers in India
Rai Sahib Ram Jawaya v State of Punjab , (AIR 1955 SC 549).	The Indian Constitution does not recognise the doctrine of separation of powers in the absolute rigidity but the functions of the different organs of the State have been sufficiently differentiated. Hence, one organ does not contemplate assumption of the functions that essentially belong to another.
Ram Krishna Dalmia v Justice Tendolkar , (AIR 1958 SC 538).	The division of powers among different organs of the State i.e. legislative, executive and judiciary is implicit in our Constitution.
Kesavananda Bharti v State of Kerala , (AIR 1973 SC 1461).	Separation of powers between the legislature, the executive and the judiciary is a part of the basic structure of the Constitution; this structure cannot be destroyed by any form of amendment
Smt. Indira Nehru Gandhi v Raj Narain , (AIR 1975 SC 2299).	The American Constitution provides for a rigid separation of governmental powers into three basic divisions the executive, legislative and judicial. The Australian Constitution follows the same pattern of distribution of powers. Unlike these Constitutions, the Indian Constitution does not expressly vest the three kinds of power in three different organs of the State. But the principle of separation of powers is not a magic formula for keeping the three organs of the State within the strict confines of their functions

8.4 Doctrine of Judicial Restraint

Doctrine of Judicial restraint means that judges should restraint themselves while exercising their powers as their role is not to frame policy or establish new rights rather their essential function is administration of justice. Even Judiciary has recognized this doctrine of separation of powers i.e. no organ should interfere in the essential functions of the other organ.

Instances of Judicial Restraint	
Decision	Judicial Restraint
Shri Sitaram Sugar Company v Union Of India , AIR 1990 SC 1277.	Price fixation and price calculation is the prerogative of the Legislature.
Kanhaiya Lal Sethia v Union of India , (1997) 6 SCC 573.	Decision as to including Rajasthani language in 8 th schedule has to be taken by Legislature and not Judiciary.
A. K. Singh v Jharkhand Mukti Morcha	Direction to the State Government for development of Garhwal and Kumaon regions ignoring plea of financial incapacity of State cannot be given by courts.
Almitra H. Patel v Union of India , AIR	Directions for keeping the Delhi clean along with prescribing methods for the same is beyond the power of

9. Conclusion

There is no enunciated demarcation beyond which each of these organ cannot cross. What is most expected out of each of them is that they consciously realize the unseen boundaries and respect each other's sovereignty. This realization would help in upholding the rights of the citizens and establishing a 'welfare state'. It is important to value the efforts of the framers of our Constitution who envisaged the nation's future as a harmonious relationship between the pillars of the government. It is not only the duty of the tripartite to realize the same but also the obligation of the citizens to realize the ultimate sanctity of the Constitution.¹¹

¹¹ Nidhi Singh & Anurag Vijay, "Separation of Powers: Constitutional Plan and Practice", International Journal of Scientific and Research Publications, Volume 3, Issue 11, November 2013, <http://www.ijsrp.org/research-paper-1113/ijsrp-p2337.pdf>, accessed on April 9, 2014 at 7.00 pm.